

36. **Sale must not be delegated.**—The trustee cannot without responsibility *delegate* the trust for sale (*g*); but there seems to be no objection to the employment * of agents by him, where such a course is conform- [*435] able to the common usage of business, and the trustee acts as prudently for the *cestuis que trust* as he would have done for himself (*a*). But an agent for sale must not be allowed to receive the purchase-money; [and an agent should not be employed to do anything out of the ordinary scope of his business; and it has even been held that the trustee's solicitor ought not to choose the valuer, as the choice is a matter on which the discretion of the trustee should be exercised (*b*).]

37. **If the sale be by auction, proper advertisements must be given.**—If the trustee think a sale by *auction* the more eligible mode, he must see that all proper advertisements are made, and due notice given. It was ruled in an old case (*c*) that a *cestui que trust* could not, by alleging the want of these preliminary steps, obtain an injunction against the sale; for the trustee being personally responsible to the *cestui que trust* for any consequential damage, the Court, it was said, could not regard it as a case of irreparable injury. But in more recent cases an injunction has been granted, it being the clear duty of the trustee to procure for the *cestuis que trust* the most advantageous sale (*d*).

[38. **Prior charges.**—By the Conveyancing and Law of Property Act, 1881, as to trusts or powers created since 31st December, 1881, and unless the settlement otherwise directs, a trustee may sell, or concur in selling, all or any part of the property either subject to prior charges or not (*e*).]

512; and see *Sidebotham v. Barrington*, 4 Beav. 110.

(*g*) *Hardwick v. Mynd*, 1 Anst. 109.

(*a*) *Ex parte Belchier*, Amb. 218; [*Re Speight*, 22 Ch. D. 727; 9 App. Cas. 1;] and see *Ord v. Noel*, 5 Mad. 438; *Rossiter v. Trafalgar Life Assurance Association*, 27 Beav. 377.

[(*b*) *Fry v. Tapson*, 28 Ch. D. 208.]

(*c*) *Pechel v. Fowler*, 2 Anst. 549.

(*d*) *Anon. Case*, 6 Mad. 10; *Blennerhasset v. Day*, 2 B. & B. 133. As to restraining a mortgagee from selling, see *Matthie v. Edwards*, 2 Coll. 465; S. C. on appeal *nomine Jones v. Matthie*, 11 Jur. 504; *Jenkins v. Jones*, 2 Giff. 99.

[(*e*) 44 & 45 Vict. c. 41, s. 35.]